

Basic Sources of Shariah

Consensus and Analogy

الإجماع والقياس



الإجماع

Consensus

Objectives of Studying Consensus (*Ijma'*) and Analogy (*Qiyas*)

- **Understanding the Importance:** Highlight the necessity and significance of *Ijma'* (consensus) and *Qiyas* (analogy) in Islamic jurisprudence.
- **Defining the Concepts:** Provide a clear understanding of what *Ijma'* and *Qiyas* are in Islamic law.
- **Explaining Pillars and Conditions:** Discuss the fundamental elements, conditions, and pillars that validate *Ijma'* and *Qiyas*.
- **Illustrating Through Examples:** Present examples of *Ijma'* and *Qiyas* to demonstrate their application in real-world scenarios.
- **Application in Contemporary Issues:** Encourage students to explore how *Ijma'* and *Qiyas* can be applied to address modern challenges in Islamic law.

What is Ijmaa' (Consensus)?

From a linguistic point of view, the word ijmaa' may refer to:

Determination, Resolution and Agreement upon something.

In Islamic terminology, it was defined by many scholars, and we can conclude what they said in this definition:

« A unanimous agreement of the mujtahid scholars (jurist) of the ummah of Prophet Muhammad (صَلَّى اللّٰهُ عَلَيْهِ وَعَلَى آلِهِ وَسَلَّمَ) after his death concerning some (Shar'i) issue at any particular time ».

Conditions Required for Establishing Consensus (Ijma'):

1. The agreement must take place among mujtahids. (Mujtahid is a person who is qualified to exercise ijtihad).
2. The agreement must be unanimous.
3. The mujtahids must belong to the Islamic community.
4. The agreement of mujtahids must be held after the death of Allah's Messenger (صَلَّى اللّٰهُ عَلَيْهِ وَعَلَىٰ آلِهِ وَسَلَّمَ).
5. The agreement must be among the mujtahids of one period, otherwise ijma would become impossible.
6. The agreement should be held on a rule of Islamic law (shar'i rulings).

Evidence for the authority of Ijmaa`

Consensus (ijma`) is one of the sources of Islamic legislation. So when it is proven that there is scholarly consensus, that constitutes binding shar`i proof and no one has the right to go against it.

1. {But whoever opposes the Messenger after guidance has become clear to him, and follows a path other than that of the believers, We will leave him to that which he himself has chosen and cast him into hell – an evil journey's end} [an-Nisa' 4:115].
2. {Thus We have made of you an Ummah justly balanced, that you might be witnesses over mankind } [al-Baqarah 2:143]. The words “witnesses over mankind” include testifying about their deeds and judging their deeds, and the words of the witness may be accepted.

Evidence for the authority of Ijmaa`

3. The verse in which Allah, says (interpretation of the meaning): “(And) if you differ in anything amongst yourselves” [an-Nisa 4:59] indicate that whatever they agreed upon is sound and correct.
4. The Prophet (blessings and peace of Allah be upon him) said: “My ummah will not unanimously agree on misguidance.” Tirmidhi (2167)
5. The consensus of the ummah is either right or wrong. If it is right, then their consensus constitutes proof, and if it is wrong, then how could this ummah, which is the dearest of nations to Allah since the time of its Prophet until the onset of the Hour, agree on something that is wrong and is not pleasing to Allah? This is utterly impossible.

**Ijma` does not cancel out a previous difference of opinion;
rather it prevents differences of opinion from arising**

For example:

Before Ijma': Scholars may have differing opinions on a topic.

After Ijma': Once a consensus is reached, the agreement serves as the authoritative position, and future scholars are not allowed to reopen or challenge the matter.

Examples of consensus (ijmaa')

- The number of obligatory prayers.
- The prohibition of adultery and alcohol.
- Denying Zakat is like denying the prayer.
- Compilation of the Qur'an.
- Prohibition on building new temples, synagogue, churches in Muslim lands.
- Portraying Prophets in movies or TV shows.

Ibn al-Qattan al-Fasi exerted great effort in compiling cases of consensus (*Ijma'*), reaching a total of 4,018 issues.

Benefits of Ijma' (Consensus):

- **Unity in Essentials:** *Ijma'* highlights the vast areas of agreement among Muslims, protecting the faith from distortion and ensuring the integrity of Islamic teachings, unlike the divisions seen in previous nations.
- **Strengthens Trust:** Knowing the agreed-upon issues builds confidence in Islam, unites Muslims, and refutes claims that the Ummah is divided on everything.
- **Certainty in Rulings:** *Ijma'* can elevate evidence from probable (*zanni*) to definitive (*qat'i*), as it confirms there is no valid contradiction to what has been unanimously agreed upon.

A complex, symmetrical Islamic geometric pattern in black lines on a white background. The pattern forms a circular frame around a central blue rectangle. It features intricate star and polygonal motifs, with lines extending outwards from the circle's perimeter.

القياس

Analogy

What is *Qiyas* (Analogy)?

From a linguistic point of view, the word Qiyaas may refer to:

Comparing and seeing similarities or measurement.

In Islamic terminology, it was defined:

«Applying a ruling from a known legal text to a new issue by identifying a shared underlying reason».

Qiyas is an extension of a Shariah rule (HUKM) from an original case (ASL) to a new case (FAR') because both cases share the same effective cause (I'llah).

The Authority of *Qiyas* (Analogy):

- Qiyas ensures the flexibility and relevance of Islamic law, allowing it to adapt to new challenges and prevent rigidity in jurisprudence. This affirms the universality of Sharia, making it applicable to all times and places, and providing clear guidance on modern issues, a unique distinction of Islamic law over all other religions.
- **Quran (Al-Hashr: 2):** "So take a lesson, O people of insight".
- **Quran (An-Nisa: 83):** "And if they had referred it to the Messenger and to those in authority among them, those who could extract it would have known it» .
- **Hadith:** "If your mother had a debt, would you pay it off on her behalf?" [*Bukhari and Muslim*].

Four pillars or components of Analogy:

❖ **Analogy has four elements:** the original issue, the new issue, the ruling, and the common reason between them.

□ **FAR' ;New issue): What's the new issue?**

It's the case that is not specifically mentioned in the Quran or Hadith, requiring a ruling to be determined

ASAL; original issue): What's the known case?

It's the case already addressed in the Quran or Hadith.

□ **I'llah ; Reason): What's the common reason?**

The reason or cause (such as harm or benefit) that links both cases.

□ **Hukm ; Ruling): What's the ruling?**

The final decision that applies to the new case, based on the shared cause.

Conditions for Validity of Qiyas (Analogical Reasoning)

1. The ruling of the original case (Asl) must be established through a text (Qur'an or Sunnah) or consensus (ijma).
2. The reason ('Illah) for the ruling in the original case must be known through a text or consensus.
3. The reason ('Illah) must have a clear and effective connection to the ruling.
4. The reason ('Illah) must be present in the secondary case (Far')
5. There must be no obstacle preventing the application of Qiyas.

Examples of Qiyas (Analogy)

- **Judge's Ruling While Angry:**

Hadith: "No judge should rule between two people while he is angry."
(*Bukhari*).

- **Prohibition of Intoxicants:**

Hadith: "Every intoxicant is wine, and every intoxicant is forbidden".
(*Sahih Muslim*).

- **Blood Donation During Fasting:**

The prohibition of taking blood while fasting is compared to the ruling on cupping, as both involve removing a significant amount of blood, which causes weakness to the body and thus breaks the fast.

- **DNA Fingerprinting to Qafah in Determining Lineage:**

If DNA testing meets all its conditions and human error is avoided, it can be analogized to Qafah (physical traits) in determining lineage, as both serve as reliable means to verify paternity or ancestry.